

**BEFORE THE ARBITRAL TRIBUNAL COMPRISING OF
THE SOLE ARBITRATOR SENIOR ADV. N.N.P.
SARDESAI AT PANAJI, GOA**

In the matter of:

VIKRAM SHAH

...Claimant

V/s.

RIVA TRINDADE & 3 Ors.

...Respondents

**APPLICATION FOR PRODUCTION OF
ADDITIONAL DOCUMENTS.**

MAY IT PLEASE THIS HON'BLE TRIBUNAL:

The Respondent No. 2 herein states and submits as follows:

1. Vide Order dated 07.08.2024, passed in Application for Appointment of Arbitrator No. 13/2024, this Arbitral Tribunal was appointed to decide the dispute between the parties arising out of the Agreement styled as the Articles of Association, purportedly entered into between Mr. Pascoal Trindade, the Claimant, and Respondent No. 4 herein.
2. Pursuant to the Order dated 07.08.2024 passed in Application for Appointment of Arbitrator No. 13/2024 and

upon the constitution of the present Arbitral Tribunal, the Claimant herein filed his Statement of Claim seeking, amongst others, the following reliefs:

- a. This Tribunal be pleased to pass a judgment, order and decree directing Respondent Nos. 1 to 3 to pay the Claimant the sum of Rs. 20,00,00,000/- towards losses incurred by the Claimant;
- b. This Hon'ble Tribunal be pleased to pass a judgment, order and decree appointing a Valuer as decided by this Tribunal to determine the value of the said property and assess the losses incurred by the Claimant;
- c. This Hon'ble Tribunal be pleased to pass a judgment, order and decree appointing a Court Commissioner to partition the property by metes and bounds in terms of the agreed ratios found in the AOA and thereafter deduct the losses incurred by the Claimant from the capital account of the Respondent Nos. 1 to 3 and reduce the same accordingly and also adjust the profit/loss to the Claimant commensurately;

- d. This Hon'ble Tribunal be pleased to pass a judgment, order and decree directing Respondent Nos. 1 to 3 to pay the Claimant the sum of Rs. 1,00,00,00,000/- towards damages, loss of opportunity to do business, loss of reputation, loss of mental peace and harassment, and towards future losses to be incurred by the Claimant.
3. This Respondent has filed the Statement of Defense and raised questions qua the jurisdiction and/or arbitrability of the disputes raised in the claim and, in no manner, waives her right to assail the arbitrability of the dispute or the jurisdiction of this Tribunal.
4. This Respondent had also preferred an application under Section 16 of the Arbitration and Conciliation Act, 1996 before this Tribunal. Vide Order dated 01.05.2026, this Tribunal deemed it fit to reject the application under Section 16 of the Arbitration and Conciliation Act, 1996. Whilst reserving the rights of the Respondents to take appropriate

measures qua the same and, without prejudice to the above, the Respondent herein preferred the present application seeking leave to produce additional documents which were brought to the attention and notice of the Respondent only recently. It appears that the amounts claimed to have been invested/paid to Late Mr. Pascoal Trindade were returned to the Claimant's enterprise and Respondent No. 4 herein through various transactions.

5. Similarly, these Respondents herein have also obtained copies of the Affidavit in Evidence filed by the Claimant in the Civil Suit pending before the Civil Judge, Senior Division, at Panaji, wherein the Claimant admits that the subject properties are exclusively owned by Late Mr. Pascoal Trindade and Respondent No. 2 herein. The records of the suit proceedings would also demonstrate that the Claimant himself stepped into the witness box and deposed in terms of his Affidavit in Evidence.

6. This Respondent craves leave to produce the following documents:

- a. Copies of the relevant extracts of the statement of account for the account held with the State Bank of India.
- b. Copies of the relevant extracts of the statement of account for the account held with HDFC Bank.
- c. Copy of the Affidavit in Evidence filed by the Claimant in Special Civil Suit No. 52/2013/A, pending before the Hon'ble Civil Judge, Senior Division, at Panaji, Goa.
- d. Copy of the Order dated 13.10.2022 passed in Special Civil Suit No. 52/2013/A, pending before the Hon'ble Civil Judge, Senior Division, at Panaji, Goa.

7. This Respondent states that the aforesaid documents are essential for the just adjudication of the dispute and are germane to deciding the application under Section 17 of the Arbitration and Conciliation Act, preferred by the Claimant herein.

8. The documents in question are germane to the present proceedings and relevant for the determination of the dispute at hand. It is apparent from the dates and nature of the transactions that these amounts were interlinked with the AOA relied upon by the Claimant, and it is evident that Late Pascoal Trindade had, in fact, paid/returned the purported investments.
9. The said documents are highly relevant and material for the just, proper, and effective adjudication of the present proceedings. These documents are material and crucial, as they go to the root of the issues in dispute, directly undermining and falsifying the claims sought to be advanced by the Claimant in the Statement of Claim.
10. Furthermore, the said documents could not have been produced earlier, since these documents were brought to the attention and notice of this Respondent only recently.

11. It is therefore just, proper, and in the interest of justice that the said documents be taken on record, exhibited, and read in evidence.
12. No prejudice whatsoever shall be caused to the Claimant and/or Respondent No. 4 by allowing the present Application. On the contrary, grave and irreparable prejudice would be occasioned to this Respondent if the present Application is not granted, despite the relevance, necessity, and authenticity of the documents in question.

In view of the above, this Respondent most respectfully prays that this Hon'ble Tribunal may be pleased to allow the present Application and permit this Respondent to place on record, produce, and rely upon the documents referred to hereinabove in the course of the arbitral proceedings and the hearing of the Section 17 application pending before this Hon'ble Tribunal.

Date: 12.06.2026

Place: Panaji, Goa

Respondent No. 2

A F F I D A V I T

I, **MRS. ALBERTINA TRINDADE**, wife of Late Mr. Pascoal Trindade, about 87 years in age, senior citizen, resident of 494, Dona Paula, Jetty, Panaji, North Goa, Goa, 403001, the Respondent No. 2 herein, do hereby on solemn affirmation state and submit as follows:

1. I say that I have filed the above application for production of additional documents before this Hon'ble Tribunal.
2. I say that the contents of the above application at paragraph nos. 1pt, 2pt, 3pt, 4pt, 5pt, 6, 7pt, 8pt, 9pt, 10, 11pt and 12pt are true and correct to my personal knowledge and belief and/or based on information derived from the records and/or inferences.
3. I say that the contents of the above application at paragraph nos. 1pt, 2pt, 3pt, 4pt, 5pt, 7pt, 8pt, 9pt, 11pt and 12pt are in the nature of legal submissions which I believe to be true and correct.

4. I say that the contents of the present affidavit at paragraph nos. 1, 2 and 3 above are true and correct to my personal knowledge and belief.

Solemnly affirmed at Panaji, Goa,
On this 12th day of June, 2026.

DEPONENT

नेहमी वापरली जाणारी संक्षिप्त रूपे / सामान्यतः प्रयोग किए जाने वाले संक्षेपाक्षर / Generally Used Abbreviations

a/c = खाते / खाता / Account	DR = नामे / नामे / Debit	ret/rtn = परतावा / वापसी / Return
adj = समायोजन / समायोजन / Adjustment	DoB = जन्मतारीख / जन्मदिनांक / Date of Birth	Rnd = पूर्णांकन / पूर्णांकन / Round of
Amt = रक्कम / राशि / Amount	eft = इलेक्ट्रॉनिक निधी अंतरण / इलेक्ट्रॉनिक निधी अंतरण /	sb = बचत बँक / बचत बँक / Savings Bank
Ar = थकबाकी / बकाया राशि / Arrear	Electronic fund transfer	SC = वसूलीसाठी लिखित / वसूली के लिए लिखित /
bal = बाकी / शेष / Balance	Inop = अकार्यशील / निष्क्रिय / Inoperative	Short Credit
Capn = पूंजीकरण / पूंजीकरण / Capitalization	ins = विमा / बीमा / Insurance	SI/So/SORD = स्थायी अनुदेश / स्थायी अनुदेश /
chg/ch = खर्च / प्रभार / Charge	int/in = व्याज / व्याज / Interest	Standing Instruction
chq = चेक / चेक / Cheque	Lon/In = कर्ज / ऋण / Loan	S/D/W/H/o = मुलगा-मुलगी-बायको-पती / लडका-लडकी
clos = शेवट / समाप्ती / Closure	min = किमान / न्यूनतम / Minimum	पत्नी-पति / Son/Daughter/Wife/Husband of
coll = वसूली / समाहरण / Collection	os = बाकी / बकाया / Outstanding	tr/tri/xfer = अंतरण / अंतरण / Transfer
comm = आडत / आडत / Commission	P & T = टपाल व टेलीग्राम / पोस्टेज एवं टेलीग्राम /	TT = तार-अंतरण / तार-अंतरण / Telegraphic Transfer
COR/CORR = दुरुस्ती / शोधन / Correction	Postage & Telegram	txn = व्यवहार / लेनदेन / Transaction
CR = जमा / जमा / Credit	Pos = विक्रिस्थान / विक्रीस्थल / Point of sale	Wdl = आहरण / आहरण / Withdrawal
csh = रोकड / रोकड / Cash	Pr = मुद्दल / मूलधन / Principal	+MOD bal = एकूण बाकी (ब.बै. + सहवर्ति खाता / कुल
dep = जमा / जमा / Deposit	proc = संसाधित प्रभार / प्रक्रिया प्रभार /	बकाया (ब.बै. + सहवर्ति खाता) / Total Balance
dft = मसुदा / प्रारूप / Draft	Processing Charge	(SB + linked MOD a/c.)
dish/dsh = नकार / अस्विकार / Dishonour	rd = आवर्ति जमा / आवर्ति जमा / Recurring Deposit	



भारतीय स्टेट बँक • भारतीय स्टेट बँक • State Bank of India

Savings Bank Account

CIF No : [REDACTED]

Account No : [REDACTED]

Customer Name: TRINDADE PASCOAL
& ALBERTINA

S/D/W/H/o: AGOSTINHO TRINDADE

Address: VILLA PASTINA,

PQ NIO

DONA PAULA

Phone: 2453379

Email: pascoaltrindade@rediffmail.com

D.O.B. (If Minor):

MOP.: EITHER OR SURVIVOR

Nom. Reg. No.:

Toll Free Help Line - 1800 112211 / 1800425 3800

DONA PAULA (GOA)
NIO CAMPUS

Phone: 2452868, 3588

Email: sbi.03566@sbi

Branch Code: 3566

Date of Issue: 30/05/2017 41811231

IFSC: SBIN0003566

MICR: 403002004

CONTINUATION



Branch Manag

DATE	PARTICULARS	CHEQUE NO.	DEBIT	CREDIT	BAL
				Brought Forward	2325449.
21.03.17	00000000SBIDIV 11675131- 018SBIDIV 116			4629.63	2330079.
21.03.17	00000000SBIDIV 10720437- 018SBIDIV 107			2982.45	2333061.
21.03.17	00000000SBIDIV 10720438- 018SBIDIV 107			2982.45	2336044.
21.03.17	00000000SBIDIV 12321259- 018SBIDIV 123			3059.66	2339103.
21.03.17	00000000SBIDIV 12321257- 018SBIDIV 123			3059.66	2342163.
21.03.17	00000000SBIDIV 12953772- 018SBIDIV 129			3443.33	2345606.
24.03.17	CR PPF1199806205	206547	150000.00		2195606.
	TRANSFER TO 011199806205				
24.03.17	CR PPF1199806216	206546	150000.00		2045606.
	TRANSFER TO 011199806216				
25.03.17	INTEREST CREDIT			20416.00	2066022.
28.03.17	HDF 0000000000000000000000000000ByClea	18		25000.00	2091022.

	TRANSFER TO 098324035664				
03.04.17	NEFT*HDFC0000240*4441U17093154010*LIC OF			449.00	2090321.
03.04.17	NEFT*HDFC0000240*4441U17093154009*LIC OF			447.00	2090768.
04.04.17	HDF 0000000000000000000000000000ByClea	693925		1689.49	2092458.
04.04.17	HDF 0000000000000000000000000000ByClea	693926		1055.93	2093514.
13.04.17	HDF 0000000000000000000000000000ByClea	9		2548750.00	4642264.
15.04.17	RTGS UTR NO: SBINR52017041500010389	206549	2500057.50		2142206.
	MURLIDHAR SADARANGANI				
01.05.17	NEFT*HDFC0000240*N121170284568179*LIC OF			449.00	2142655.
01.05.17	NEFT*HDFC0000240*N121170284563577*LIC OF			447.00	2143102.
04.05.17	TRF FR PASCOAL TRINDADE TO RIVA TRINDAD	206550	325000.00		1818102.
	TRANSFER TO 030006304498				
08.05.17	OWN CHQ XFER DP	15782		300000.00	2118102.
11.05.17	TJS 0000000000000000000000000000ByClea	8206		600000.00	2718102.
22.05.17	WITHDRAWAL TRANSFER BY CHEQUE	206551	185800.00		2532302.
				Carried Forward	2532302.

Carried Forward 184

DATE	PARTICULARS	CHEQUE NO.	DEBIT	CREDIT
	Brought Forward			185
	TRANSFER FROM 599437105212			
01.07.17	NEFT+HDFC0000240*N182170322068635*LIC OF			185
01.07.17	NEFT+HDFC0000240*N182170322064943*LIC OF			185
01.08.17	NEFT+HDFC0000240*N213170340388139*LIC OF			185
01.08.17	NEFT+HDFC0000240*N213170340388140*LIC OF			185
01.09.17	NEFT+HDFC0000240*N244170359625157*LIC OF			185
01.09.17	NEFT+HDFC0000240*N244170359632195*LIC OF			185
04.09.17	OWN CHQ XPER DF	815421		385
07.09.17	RTGS UTR NO: HDPCR52017090753205620			885
	PVM ASSOCIATES			
07.09.17	RTGS UTR NO: SBINR52017090700051935	206556	7000059.00	185
	LOONKAR DEVELOPERS PVT LTD			
19.09.17	XAS 00000000000000000000ByClea	2882		185
25.09.17	INTEREST CREDIT			187
29.09.17	RTGS UTR NO: SBINR52017092900003773	206557	1300059.00	572
	MURLI DHAN SADA WANGANI			
03.10.17	NEFT+HDFC0000240*N276170378191412*LIC OF			573
03.10.17	NEFT+HDFC0000240*N276170378191413*LIC OF			573
03.10.17	HDF 0000000000000000000000000000ByClea	40		1873
23.10.17	TRF FR PASCOAL TRINDADE TO KIVA TRINDAD	206558	19632.00	1854
	TRANSFER TO 030111056965			
01.11.17	NEFT+HDFC0000240*N305170399857768*LIC OF			1854
01.11.17	NEFT+HDFC0000240*N305170399871599*LIC OF			1855
27.11.17	HDF 0000000000000000000000000000ByClea	41		28550
	Uncl Bal: 0.00 Clr Bal: 2855056.71 Cr; MOD BAL: 0.00			

हमी बापरली जाणारी संक्षिप्त रूपे/सामान्यतः प्रयोग किए जाने वाले संक्षेपाक्षर/Generally Used Abbreviations :

a/c = खाते/खाता/Account
 adj = समायोजन/समायोजन/Adjustment
 Amt = रकम/राशि/Amount
 Ar = धकबाकी/बकाया राशि/Arrear
 bal = बाकी/शेष/Balance
 Capn = पूंजीकरण/पूंजीकरण/Capitalization
 chg/ch = खर्च/प्रभार/Charge
 chq = चेक/चेक/Cheque
 clos = शेबट/समाप्ति/Closure
 coll = वसूली/समाहरण/Collection
 comm = आइट/आदत/Commission
 COR/CORR = दुरुस्ती/सोधन/Correction
 CR = जमा/जमा/Credit
 csh = रोकड़/रोकड़/Cash
 dep = जमा/जमा/Deposit
 dft = मसुदा/प्रारूप/Draft
 dish/dsh = नकार/अस्विकार/Dishonour
 DR = नामे/नामे/Debit
 DoB = जन्मतारीख/जन्मदिनांक/Date of Birth

eft = इलेक्ट्रॉनिक निधि अंतरण/इलेक्ट्रॉनिक निधि अंतरण/
 Electronic fund transfer
 Inop = अकार्यशील/निष्क्रिय/Inoperative
 ins = विमा/बीमा/Insurance
 Int/in = व्याज/व्याज/Interest
 Lon/in = कर्ज/ऋण/Loan
 min = किमान/न्यूनतम/Minimum
 os = बाकी/बकाया/Outstanding
 P & T = टपाल व टेलीग्राम/पोस्टेज एवं टेलीग्राम/
 Postage & Telegram
 Pos = विक्रिस्थान/बिग्रीस्थल/Point of sale
 Pr = मूल/मूलधन/Principal
 proc = संसाधित प्रभार/प्रक्रिया प्रभार/Processing Charge
 rd = आवर्ति जमा/आवर्ति जमा/Recurring Deposit
 ret/rtn = परताबा/वापसी/Return
 Rnd = पूर्णांकन/पूर्णकन/Round of
 sb = बचत बैंक/बचत बैंक/Savings Bank
 SC = वसूलीसाठी लिखित/वसूली के लिए लिखित/Short credit
 SI/So/SORD = स्थायी अनुदेश/स्थायी अनुदेश/
 Standing Instruction

S/D/W/H/o = सुतगा-मुलगी-बायको-पती/
 लडका-लडकी-पत्नी पति/
 Son/Daughter/Wife/Husband of
 tr/trf/xfer = अंतरण/अंतरण/Transfer
 TT = तार-अंतरण/तार-अंतरण/Telegraphic Transfer
 txn = व्यवहार/लेनदेन/Transaction
 Wdl = आहरण/आहरण/Withdrawal
 +MOD bal = एकूण बाकी (ब.ब. + सहवर्ति खाता)/
 कुल बकाया(ब.ब. + सहवर्ति खाता)/
 Total Balance (SB + linked MOD a/c.)



भारतीय स्टेट बैंक • भारतीय स्टेट बैंक • State Bank of India

BRANCH CODE NO. 3566
 DONA PAULA B.R. (GOA)
 (गोवा) (दोना पाउला ब.र.)

Savings Bank Account

CIF No :

Account No :

Customer Name: TRINDADE PASCOAL
 & ALBERTINA

S/D/W/H/o

Address: VILLA PASTINA,

PO NIO

DONA PAULA

Phone: 2453379

Email:

D.O.B. (If Minor):

MOP.: EITHER OR SURVIVOR

Toll Free Help Line - 1800 112211 / 1800425 3800

DONA PAULA (GOA)

NIO CAMPUS

Phone: 2452868, 3588

Email: sbi.03566@sbi.co.in

Branch Code: 3566

Date of Issue: 13/04/

13/04/2013 316170

IFSC: SBIN0003566

CONTINUATION



Report for 4/2/2013 14

DATE	PARTICULARS	CHEQUE NO.	DEBIT	CREDIT	BALANCE
				Brought Forward	1092133.54Cr
01.02.13	NEFT HDFC 130128587644LIC OF INDIA 395			449.00	1092582.54Cr
01.02.13	NEFT HDFC 130128587626LIC OF INDIA 395			449.00	1093031.54Cr
01.02.13	NEFT HDFC 130128587635LIC OF INDIA 395			449.00	1093480.54Cr
12.02.13	HDF	674204		15972.00	1109452.54Cr
16.02.13	COB	837627		12757.00	1122209.54Cr
27.02.13	CHLN NO 625 DT 27/02 TOWN & COUNTRY FL	800527	908100.00		214109.54Cr
	TRF TO 011199791989				
01.03.13	NEFT HDFC 130227896911LIC OF INDIA 395			449.00	214558.54Cr
05.03.13	IRINEU TRINDADE PASCOAL	800528	134360.00		80198.54Cr
	TRF TO 011199791468				
05.03.13	MAP	87116		400000.00	480198.54Cr
05.03.13	COB	837655		12757.00	492955.54Cr
	ALBERTINA TRINIDADE	800529	254000.00		238955.54Cr
	TRF TO 011199791468				
12.03.13	HDF	674205		15972.00	254927.54Cr
13.03.13	OBC	455717		50000.00	304927.54Cr
22.03.13	CIT	800530	1735.00		303192.54Cr
22.03.13	RTGS WDBH13081890836 MURLIDHAR S SADARA			500000.00	803192.54Cr
28.03.13	IRINEU TRINDADE PASCOAL	800531	50470.00		752722.54Cr
	TRF TO 011199791468				
28.03.13	ALBERTINA TRINIDADE	800532	50470.00		702252.54Cr
	TRF TO 011199791468				
02.04.13	REC INFRA INT UPNECSR310313052989 NECS02			1640.00	703892.54Cr
02.04.13	REC INFRA INT UPNECSR310313052988 NECS02			1640.00	705532.54Cr
02.04.13	LOCKER RENT		750.00		704782.54Cr
	TRF TO 098324035664				
02.04.13	NEFT HDFC 130326587671LIC OF INDIA 395			449.00	705231.54Cr
02.04.13	RTGS SBINH13092382679 PRAVAR TRADE INVES	800536	500031.00		205209.54Cr
				Carried Forward	205200.54Cr

DATE	PARTICULARS	CHEQUE NO.	DEBIT	CREDIT	BALANCE
				Brought Forward	283267.54Cr
02.04.13	RTGS SBINH13092382679 PRAVAR T R08 ACCO		500000.00		705200.54Cr
03.04.13	RTGS INDBH13093860684 MURLIDHAR S SADARA		1800000.00		2505200.54Cr
04.04.13	P13041430347SBIDIV-10720438-Tr For DCR		2609.64		2507810.18Cr
04.04.13	TRF FHM CASH MANAGEMENT PRODUCE P13041430348SBIDIV-10720437-Tr For DCR		2609.64		2510419.82Cr
04.04.13	TRF FHM CASH MANAGEMENT PRODUCE P13041490566SBIDIV-11675131-Tr For DCR		4050.92		2514470.74Cr
04.04.13	TRF FHM CASH MANAGEMENT PRODUCE P13041490567SBIDIV-11674135-Tr For DCR		4050.92		2518521.66Cr
04.04.13	TRF FHM CASH MANAGEMENT PRODUCE P13041525721SBIDIV-12321259-Tr For DCR		2677.21		2521198.87Cr
04.04.13	TRF FHM CASH MANAGEMENT PRODUCE P13041525721SBIDIV-12321259-Tr For DCR		2677.21		2523876.08Cr
04.04.13	TRF FHM CASH MANAGEMENT PRODUCE				
04.04.13	RTGS SBINH13094337344 PRAVAR TRADE INVE	800538	500031.00		2023845.08Cr
04.04.13	RTGS SBINH13094344934 PRAVAR TRADE INVE	800537	1800056.00		223789.08Cr
05.04.13	P13041525720SBIDIV-12953772-Tr For DCR			3012.91	226801.99Cr
06.04.13	TRF FHM CASH MANAGEMENT PRODUCE CIT	800535	3434.00		223367.99Cr
15.04.13	RTGS INDBH13105735839 MURLIDHAR S SADARA			750000.00	973367.99Cr
16.04.13	RTGS SBINH13106320475 PRAVAR TRADE INVE	800539	750031.00		223336.99Cr
19.04.13	STATEMENT CHARGES		150.00		223186.99Cr
30.04.13	RTGS INDBH13120685126 MURLIDHAR S SADARA			250000.00	473186.99Cr
01.05.13	NEFT HDFC 130425527540LIC OF INDIA 395			449.00	473635.99Cr
04.05.13	RTGS SBINH13124303317 PRAVAR TRADE INVE	800541	250031.00		223604.99Cr
14.05.13	CIT	800542	1486.00		222118.99Cr



MR PASCOAL IRINEU TRINDADE
PASTINA VILL PO NIO
DONAPULA
NEAR NIO CIRCLE
PANAJI 403004
GOA INDIA

JOINT HOLDERS : ALBERTINA TRINDADE

Account Branch : TALEIGAO - GOA
Address : HDFC BANK LTD
T.R.RESIDENCY BUILDING
TALEIGAO MARKET ROAD
City : TALEIGAO 403003
State : GOA
Phone no. : 18002600/18001600
OD Limit : 0.00
Currency : INR
Email :
Cust ID :
Account No :
A/C Open Date :
Account Status :
RTGS/NEFT IFSC :
Branch Code : 2368 Product Code : 100



Nomination : Registered

Generated On: 07-FEB-2025 04:27:39

Generated By: S55009

Requesting Branch Code: 2368

From : 18/09/2012

To : 06/02/2025

Statement of account

Date	Narration	Chq./Ref.No.	Value Dt	Withdrawal Amt.	Deposit Amt.	Closing Bal.
26/04/14	FT - CR - 50200004014352 -	0000000000000001	26/04/14	0.00	14,000,000.00	14,000.00
26/04/14	RTGS DR-CIT10100000-MURLIDHAR SHAMBAS SADARANGANI-TALEIGAO - G-HDFCH14116947924	00000000000017011	26/04/14	6,850,000.00	0.00	7,150.00
03/05/14	CHQ PAID-MICR CTS-MU-PRANAV TRADE INVEST	00000000000017012	03/05/14	7,100,000.00	0.00	50.00
26/06/14	CHQ DEP - MICR 8 CLEARING - GOA, PANJIM	00000000000577804	27/06/14	0.00	10,000,000.00	10,050.00
30/06/14	IRINEU TRINDADE PASCOAL DR - 23682990000029 - TALEIGAO BRANCH CHEQUE DUMMY ACCOUNT	0000000000000000	30/06/14	10,000,000.00	0.00	50.00
01/10/14	CREDIT INTEREST CAPITALISED	0000000000000000	30/09/14	0.00	9,600.00	59.00
01/04/15	CREDIT INTEREST CAPITALISED	0000000000000000	31/03/15	0.00	1,189.00	60.00
01/10/15	CREDIT INTEREST CAPITALISED	0000000000000000	30/09/15	0.00	1,219.00	62.00
01/01/16	RTGS CR-ORBC0101070-PASCOAL TRINDADE-IRINEU TRINDADE PASCOAL-ORBCR52016010100076741	ORBCR5201601010007 6741	01/01/16	0.00	375,000.00	437.00
01/01/16	RTGS CR-ORBC0101070-SHIVAM HOLIDAY HOME-IRINEU TRINDADE PASCOAL-ORBCR52016010100076892	ORBCR5201601010007 6892	01/01/16	0.00	750,000.00	1,187.00
05/01/16	INITIAL PAYIN FD - 50300125085429	108405201601054861 0076	05/01/16	1,125,000.00	0.00	62.00
28/03/16	PROGRAMMANAGEMENT FEE JAN-MAR16 230316	0000000000000000	28/03/16	114.50	0.00	61.00
01/04/16	CREDIT INTEREST CAPITALISED	0000000000000000	31/03/16	0.00	1,734.00	60.00
01/07/16	CREDIT INTEREST CAPITALISED	0000000000000000	30/06/16	0.00	633.00	60.00
05/07/16	FD REDEEM PRINCIPAL - 50300099422220/2	0000000000000000	05/07/16	0.00	7,420,687.90	7,480.00
12/07/16	INITIAL PAYIN FD - 50300153075971	108405201607122234 9001	12/07/16	6,000,000.00	0.00	1,480.00
15/07/16	MC PAID	00000000000389385	15/07/16	0.00	4,356,913.30	5,840.00
15/07/16	INITIAL PAYIN FD - 50300153504953	108405201607151451	15/07/16	5,500,000.00	0.00	34.00

HDFC BANK LIMITED

*Closing balance includes funds earmarked for hold and uncleared funds

Contents of this statement will be considered correct if no error is reported within 30 days of receipt of statement. The address on this statement is that on record with the Bank as at the day of requesting this statement.

State account branch GSTIN:30AAACH2702H1ZD

HDFC Bank GSTIN number details are available at <https://www.hdfcbank.com/personal/making-payments/online-tax-payment/goods-and-service-tax>.

Registered Office Address: HDFC Bank House, Senapati Bapat Marg, Lower Parel, Mumbai 400013

SC 552/13
Dw/C-144
70/4/22

IN THE COURT OF CIVIL JUDGE SENIOR DIVISION
AT PANAJI - GOA



Special Civil Suit No. 52/2013/A

Comunidade of Bambolim

... Plaintiff

Versus

Pascoal Trindade & Ors.

... Defendants

Name: Vikram Shah
Father's Name: Chinubhai Shah
Age: 72 years
Resident of: 28, Capri Building, 9, Manav Mandir
Road, Near Teen Batti, Walkeshwar,
Mumbai Maharashtra - 400 006.

I, Vikram Chinubhai Shah, son of Chinubhai Shah, 72 years, resident of 28, Capri Building, 9, Manav Mandir Road, Near Teen Batti, Walkeshwar, Mumbai Maharashtra - 400 006, the Authorised Representative of Defendant No. 20 in the present suit do hereby on solemn state as under:-

[Signature]



1. I say that I am a law abiding citizen and a respectable businessman engaged in the business of construction and real estate development.
2. I say that I am conversant with the facts surrounding the present case in my personally capacity by virtue of being the business partner of the deceased Defendant No. 1, Pascoal Irineu Trindade as well as based on the records maintained by the Defendant No. 20.
3. I say that the Defendant No. 1 (since deceased now his legal heirs) 2 and 20 herein, are the lawful owner in actual and physical possession and enjoyment of the following properties:-

The property known as OHOR or OROS and "BAILEM FONDIEM" And "SAVELI GALI", bearing survey Nos.93/2, 93/3 And 93/4 Of Village Bambolim within the limits of Village Panchayat, Curca, Bambolim & Talaulim, Taluka of Tiswadi, Registration Sub-District of North Goa District, Admeasuring 35,600 Square Meters, 26,825 Square Meters And 35,075 Square Meters, respectively, totally admeasuring

[Handwritten signature]



97,500 Square Meters and which property is bounded as follows:-

*Property surveyed under Survey No. 93/2, admeasuring
an area of 35,600 Square Meters*

And bounded as under:-

On the East : By plot surveyed under No.93/1
On the West : By plots surveyed under Nos.93, 106,
107/1, 2, 3, 5 & 6.
On the North : By Bambolim village road & plot
surveyed
under No.107/7-11
On the South : By plot surveyed under No.103

*Property surveyed under Survey No. 93/3, admeasuring
an area of 26,825 Square Meters*

And bounded as under:-



On the East : By plot surveyed under No.93/1
On the West : By the plot of GMC surveyed under
Nos.102/3 and 104
On the North : By plot surveyed under No.103
On the South : By plot surveyed under No.94



*Property surveyed under Survey No. 93/4, admeasuring
an area of 35,075 Square Meters*

And bounded as under:-

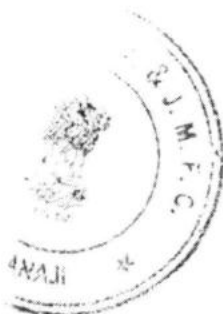
On the East : By plot surveyed under No.93/1
On the West : By plot Nos.95, 96 & 97
On the North : By plot surveyed under No.94
On the South : By village boundary of Siridao

*(All of the aforementioned properties are hereinafter referred
to as the said properties for the sake of brevity)*





4. I say that the based on the records maintained by the Directorate of Survey and Land Records, Government of Goa said properties right from prior to the commencement of the survey exercise, the said properties were private properties originally belonging to Maria Conceicao Rodrigues of Santa Cruz.
5. I say that this position is clearly established in terms of Form III issued by the Department of Survey & Land Records in respect of the said properties, which document preceded the Form I & XIV of Record of Rights and prior to the promulgation of Land Survey in the concerned Village.
6. I say that the said Maria Conceicao Rodrigues was married to Gregorio Germano Mergulhao of Santa Cruz and out of the wedlock Maria Conceicao Rodrigues had two sons, namely, Francisco Aleixo das Dores Mergulhao and Emanuel Joveaniano Paixao Mergulhao.
7. I say that the said Maria Conceicao Rodrigues who was the widow of Gregorio Germano Mergulhao expired on 05.10.1901.



- 
8. I say that Francisco Aleixo das Dores Mergulhao expired on 12.07.1906 as bachelor without any will or last testament.
9. I say that Emanuel Joveaniano Paixao Mergulhao expired on 11.11.1929. The said Emanuel Joveaniano Paixao Mergulhao was married to Maria Gertrudes does Pereguinos Viegas.
10. I say that out of the wedlock, Emanuel Joveaniano Paixao Mergulhao and Maria Gertrudes does Pereguinos Viegas had only one male issue, their son, namely Maximo Mergulhao.
11. I say that Maximo Mergulhao is the late husband of Mrs. Dionisia Dias E Mergulhao alias Dionisio Dias E Mergulhao, the erstwhile Defendant No. 3 herein (who has since been deleted by the Plaintiff from the present proceedings).
12. I say that Maximo Mergulhao alias Maximiano Mergulhao expired on 26.03.1998 bequeathing by Will dated 14.05.1990 executed before the Civil Registrar Cum Sub-Registrar and Notary Public Ex-officio the disposable quota of all his properties in favour of his only son Mr. Americo Mergulhao which is seen from the Deed of Succession dated 04.06.1998. Thus Mrs. Dionisia Dias E Mergulhao alias Dionisio Dias E
- 
- 



Mergulhao i.e the interested party as his moiety holder or half sharer and his heir his only son Mr. Americo Mergulhao married to Mrs. Celia Menezes. Thus the only and universal heir and successor.

13.I say that vide Deed of Gratuitous Relinquishment of Illiquid Rights dated 13.05.1998 the said Americo Mergulhao son of Maximo Mergulhao and his wife Celia Menezes relinquished their undefined, illiquid and undivided right, title and interest which they were entitled to upon the death of their father and father-in-law Mr. Maximo Mergulhao, thus making their mother and mother-in-law Mrs. Dionisia Dias E Mergulhao alias Dionisio Dias E Mergulhao, the erstwhile Defendant No. 3 herein, the sole owner of the said properties which are mentioned above namely Ohor or Oros and "Bailem Fondiem" and "Bailem Fondiem" and "Saveli Gali".

14.I say that vide Three (3) Deeds of Sale the said properties were purchased by the Defendant No. 1 for valuable consideration from that the said Dionisia Dias E Mergulhao alias Dionisio Dias E Mergulhao, with the intervention of the erstwhile Defendant No. 4 and 5 as confirming party therein.



15.I say that Deed of Sale dated 25th April 2006 is registered in the office of the Sub-Registrar of Ilhas Goa under No.1238 at pages 369 to 387, Book I, Volume 1634 dated 03.05.2006.

16.I say that Deed of Sale dated 25th April 2006 is registered in the office of the Sub-Registrar of Ilhas Goa under No.1239 at pages 388 to 408, Book I, Volume 1634 dated 03.05.2006.

17.I say that Deed of Sale dated 25th April 2006 is registered in the office of the Sub-Registrar of Ilhas Goa under No.1240 at pages 409 to 427, Book I, Volume 1634 dated 03.05.2006.

18.I say that the Defendant Nos. 1 and 2 have since been in continuous and peaceful possession and enjoyment of the said properties and thereafter in so far as the suit property bearing Survey No. 93/2 is concerned, the Defendant No. 20 continues to be in possession and enjoyment thereof.

19.I say that subsequent to purchase of the said properties vide aforementioned Deeds of Sale, whilst the deceased Defendant No. 1 and myself were in the process of applying for mutation of the land records, it was realized by us that though the





Defendant No. 1 had acquired exclusive ownership of the said properties, certain names were erroneously reflecting in the Tenant's Column of the Form I & XIV of Record of Rights. I say that though the names were appearing in the Tenants Column the same had at no point in time been declared as tenant/s as required under the Goa, Daman & Diu Agricultural Tenancy Act, 1964, and their names were as such erroneously displayed therein. I say that I therefore suggested to the Defendant No. 1 to seek legal advice in this direction.

20. I say that after seeking legal advice the Defendant No. 1 instituted a civil suit against the said persons namely Pundalik Konkolkar and 13 others viz., Regular Civil Suit No. 6/2007/C before the Court of Civil Judge, Junior Division at Panaji seeking declaration that he is the exclusive owner in possession and enjoyment of the said properties bearing Survey Nos. 93/2, 93/3 and 93/4 totally admeasuring about 97,500 Sq.Mtrs and for deleting erroneous entries in the tenants column in Survey Record of the said property or and for directing the Dy. Collector or any other authority necessary under the Land Revenue Code to delete the said entries.



21.I say that the said suit was decreed vide judgement and order dated 25.01.2007 *inter alia* holding the Defendant No. 1 as the owner of the said properties bearing Survey Nos. 93/2, 93/3 and 93/4. Admeasuring about 97500 Sq. Mtrs.

22.I say that the said persons whose names were wrongly recorded in the Column of Tenant fairly admitted that their names were erroneously recorded in Tenants column of Survey Record and they declared that they have no right of whatsoever to the suit properties and that they have no objection for deletion of said erroneous entries. I say that in terms of the decretal order, the Ld. Judge was also pleased to restrain the said persons and their families from interfering in any manner in the suit property.

23.I say that pursuant to the said decree said persons and legal heirs, whose names were wrongly/ erroneously recorded in the survey record of Suit Properties bearing Survey Nos. 93/2,93/3,93/4 approached the Dy. Collector and filed an application u/s 103 of Land Revenue Code, 1968 admitting that the Defendant No. 1 is the owner of the said properties bearing Survey Nos. 93/2, 93/3 and 93/4 and that their names had been





wrongly recorded in the Column of Tenant and further requested to delete the same.

24.I say that the said application was registered as Case No. LRC/COR/8/2007 and it was only after conducting a detailed enquiry that the Dy. Collector & S.D.O. by judgment and order dated 03.04.2007 allowed the said application preferred by the persons whose names were appearing in the column of Tenant and accordingly directed the Mamlatdar of Tiswadi to delete said names from Survey Records which were entered wrongly.

25.I say that the Mamlatdar of Tiswadi accordingly carried out deletion of the said erroneous entries from the "Tenant's column" of Properties bearing Survey Nos. 93/2, 93/3 and 93/4 in accordance with the provisions of law.

26.I say that I am aware based on records maintained by the Defendant No. 1 as well as 20, that the Plaintiff i.e. Comunidade of Bambolim had filed a suit being, Special Civil Suit No. 222/1994/B before the Civil Judge Senior Division at Panaji against Maximo Mergulhao since deceased through L.R.S. Mrs. Deonosio Dias e Mergulhao, the



Defendant No. 3 herein, for declaration that the another property which was surveyed under No. 89/3 is part of the property named by "Oros" belonging to Comunidade. Similarly, the Plaintiff has instituted another suit being Civil Suit No. 66/2009 before the Hon'ble District Court in respect of these very suit properties seeking identical reliefs.



27.I say that vide Consent Decree dated 21.11.1998 the said suit was compromised and decreed. I say that upon perusal of the records and proceedings of the said suit it would transpire that the said suit was being conducted by one Jeronimo Monteiro alias Jerry, the Special Attorney of the Comunidade, who continued to be a member and constituent of the Comunidade until his demise, and Advocate Shri. G. D. Kirtani on behalf of Comunidade.

28.I say that in compromise of the said suit, the Plaintiff agreed to take 45 plots in Survey No. 93/2, 93/3 and 93/4.

29.I say that the Plaintiffs did not have any claim in respect of the suit properties herein ie. Survey Nos. 93/2, 93/3, 93/4 in the Special Civil Suit No. 222/1994/B. However, the Plaintiff





agreed to take 45 plots in Survey No. 93/2, 93/3 and 93/4 in order to compromise the said suit. I say that if it were to be the case of the Plaintiff that the suit properties belonged to the Plaintiff, then one fails to understand as to why the Plaintiff Comunidade would settle to take 45 plots in their own property. I say that this conduct alone goes to show that there is no ownership or any semblance of title in favour of the Comunidade in respect of the Survey No. 93/2, 93/3 and 93/4.

30.I say that said Consent Terms and the Consent Decree were registered before Sub Registrar of Tiswadi at Panaji.

31.I say that the name of the Defendant No. 1 is reflected in the Form I & XIV of Record of Rights of all three suit properties viz. Survey Nos. 93/2, 93/3 and 93/4 of Village Bambolim.

32.I say that the Consent Terms dated 19.11.1998, Consent Decree dated 21.11.1998, Deeds of Sale dated 25.04.2006, Forms I & XIV have all been in the public domain.



33.I say that on 29.09.2008 the then President of the Plaintiff, Carmon U. C. de Souza alongwith other office bearers and components of the Comunidade of Bambolim addressed a handwritten letter to the Defendant No. 1 asking for a per square meter rate to be paid to them in return for the 45 plots allotted to them under the Consent Terms. I say that the said Letter bears the signatures of ten (10) persons including that of the Attorney Shri. Luis Abreu who has signed the plaint and deposed as a witness in the present suit.

34.I say that the proposal of the then President of the Plaintiff, Carmon U. C. de Souza alongwith other office bearers and components of the Comunidade of Bambolim addressed in terms of the aforestated Letter dated 29.09.2008 was discussed by the Defendant No. 1 with me and we had decided that the same was no feasible in view of the exorbitant rate demanded by the said office bearers and components of the Comunidade of Bambolim.

35.I say that even as of 29.09.2008, the Consent Terms dated 19.11.1998 and the Consent Decree dated 21.11.1998 was very much known to the then President of the Plaintiff, Carmon U.



C. de Souza alongwith other office bearers and components of the Comunidade of Bambolim including the Attorney Shri. Luis Abreu who has signed the plaint and deposed as a witness in the present suit.

36. I say that the then President of the Comunidade of Bambolim, Mr. Marvin Gonsalves, in his personal capacity had filed a Writ Petition viz., Writ Petition No. 102 of 2009 before the Hon'ble High Court of Bombay at Goa seeking inquiry in respect of the properties in question. The Hon'ble High Court of Bombay at Goa, based on statement made by the Ld. Advocate General, passed an order directing the Deputy Collector and S.D.O., Panaji to hold a detail inquiry looking into the allegations of the Comunidade and its constituents.

37. I say that submitted that said inquiry was registered as Case No. ILL/CNV/19/2009-881 by the Deputy Collector. I say that although the inquiry was initiated by the Dy. Collector on the basis of complaints made by the Comunidade of Bambolim, the said Comunidade chose to array themselves as party respondents in the said inquiry instead of being in its forefront, or becoming State witnesses which itself goes to show that the constituents of the Comunidade of Bambolim were litigating



with ulterior motive as they on their own did not have any evidence to show that the Comunidade of Bambolim had anything to do with the suit properties.

38. I say that these Plaintiff participated in the inquiry and cross examined the Mamlatdar as well as other state witnesses and thus prolonging the inquiry for period of more than 2 years which was otherwise directed to be finished within 3 months in terms of the Order dated 21.06.2010 of the Hon'ble High Court.

39. I say that the Comunidade inspite of having ample opportunity chose not to examine themselves on oath before the Dy. Collector and instead preferred to examine its ex-office bearers. I say that the said ex-office bearers of the Comunidade in cross examination has clearly admitted that the boundaries of the properties in question owned by the undersigned are different than those claimed by the Comunidade of Bambolim.

40. I say that the Deputy Collector gave a finding in our favour and rejected all the contentions and allegations of the Plaintiff and its constituents.



41.I say that the accordingly Writ Petition No. 102/2009 was disposed off.

42.I say that the constituents of the Plaintiff once again approached the Hon'ble High Court of Bombay at Goa vide Writ Petition Nos. 506 of 2009, 557 of 2009, 577 of 2009 and 657 of 2011. I say that the contentions raised in the aforementioned writ petitions were identical to those raised in the present suit proceedings. I say that all the contentions were rejected by the Hon'ble High Court while passing a detailed Order dated 29.03.2012.

43.I say that the constituents of the Plaintiff assailed the Order dated 29.03.2012 passed by the Hon'ble High Court before the Hon'ble Supreme Court of India vide Special Leave Petition No. 19595-19598/2012.

44.I say that the Hon'ble Supreme Court of India vide Order dated 24.08.2012 rejected the contentions of the constituents of the Plaintiff.



45.I say that the Defendant No. 1 has been granted conversion sanads, vide Conversion Sanads bearing Nos. RB/CNV/TIS/133/2008 dated 16.12.2011 in respect of property surveyed under Survey No. 93/2, Conversion Sanad No. RB/CNV/TIS/135/2008 dated 16.12.2011 in respect of property surveyed under Survey No. 93/3, and Conversion Sanad No. RB/CNV/TIS/03/2008 dated 16.12.2011 in respect of property surveyed under Survey No. 93/4.

46.I say that Technical Clearance Orders have been issued by the Town & Country Planning Department Panaji Reference No. TIS/6124/BAM/TCP/12/384 Dated 03.04.2012 in respect of property bearing survey No. 93/2 of Village Bambolim , Taluka Tiswadi, Goa; Reference No. TIS/7554/BAM/TCP/13/377 Dated 27.02.2013 in respect of property bearing survey No. 93/3 of Village Bambolim, Taluka Tiswadi, Goa; and Reference No. TIS/6087/BAM/TCP/12/1045 Dated 27.08.2012 in respect of property bearing survey no.93/4 of Village Bambolim , Taluka Tiswadi , Goa in favour of Defendant No. 1.





47.I say that NOCs from Health Department Ref No. UHC/DHS/NOC/12-13/326 dated 27.04.2012 in respect of property surveyed under Survey No. 93/2; Ref No. UHCP/DHS/NOC/12-13/3557 dated 13.3.2013 in respect of property surveyed under Survey No. 93/3; and Ref No. UHCP/DHS/NOC/12-13/1995 Dated 21.09.2012 in respect of property surveyed under Survey No. 93/4, have been duly obtained by the Defendant No. 1.

48.I say that Environmental Sanction has been accorded vide order bearing Ref No. 3-181-2010/STE-DIR/105 Dated 22.03.2013 in respect of property surveyed under Survey No. 93/2, and similarly vide order bearing Ref No: 3-181-2010/STE-DIR/104 Dated 22.03.2013 in respect of property surveyed under Survey No. 93/4 at the request of the Defendant No. 1.

49.I say that the Defendant No. 1 has obtained Construction License Ref No. VP/CBT/2013-14/CONST/186 Dated 02.05.2013 in respect of property bearing survey no.93/2 of Village Bambolim, Taluka Tiswadi , Goa; vide Ref No.VP/CBT/2013-14/CONST/88 dated 16.04.2013 in respect of property surveyed under Survey No. 93/3 of Village



Bambolim, Taluka Tiswadi , Goa, and vide Ref No.VP/CBT/2012-13/CONST/2041 Dated 30.03.2013 in respect of property surveyed under Survey No. 93/4 of Village Bambolim, Taluka Tiswadi , Goa, by the Village Panchayat of Curca, Bambolim and Talaulim thus entitling the undertaking of construction activity in the said properties.



50.I say that the sole intent of the Plaintiff has been to mete out continuous harassment in order to coerce into yielding to the demands of the Plaintiff. I say that the entire gambit of the Plaintiffs is to extort money by leveling false and baseless claims in respect of the said properties.

51.I say that vide Deed of Sale dated 16.03.2016, the Defendant No. 20, M/s. Loonkar Developers has purchased the property bearing Survey No. 93/2 admeasuring 35,600 sq. mts for a valuable consideration.

52.I say that said properties have always been private properties.

53.I say that the so called Tombasao Records are the private records of the Plaintiff, created and fabricated.

A handwritten signature in black ink, consisting of a stylized 'V' or 'X' shape.





54.I say that the Plantas are not contemporaneous to the Survey Plan available with the Survey Department, the same are not updated and as such cannot be relied upon.

55.I say that the Land Acquisition carried out in terms of the Notification No. LQN-10/42 dated 18.08.1965 does not pertain to the suit properties.

56.I say that the identification of the properties claimed by the Plaintiffs in terms of the suit plaint is vague, elusive and ambiguous.

57.I say that Survey No. 32, 32/1, 43/2, 44, 45, 46/1 or 89/3 do not correspond to Survey Nos. 93/2, 93/3 or 93/4.

58.I say that Survey No. 89/3 does not correspond to Survey Nos. 93/2, 93/3 or 93/4.

59.I say that the Plaintiff had knowledge of the said Consent Decree all along.



60.I say that the Correspondence Certificate relied upon by the Plaintiffs is erroneous and itself bears the remark at page 2 of the said certificate that :- *"the same is determined by way of superimposing new survey map on Planta No. 15036 and 15037 - do not involve any field work - As such verification of corresponding new survey No. may differ on ground"*.

61.I say that the said document is therefore inconclusive, and as such does not in any manner further the allegations of the Plaintiff.

62.I say that the Plaintiffs have failed to establish any title to the suit properties and as such the present suit deserves to be dismissed.

63.I say that the present suit has been instituted by the Plaintiffs after having failed to secure any relief from various judicial fora including the Hon'ble High Court and the Hon'ble Supreme Court. The present suit is barred by limitation and deserves to be dismissed.



Solemnly affirmed on this 20th day of April, 2022 at Panaji,
Tiswadi, Goa.

(Deponent)

Identified by me:-

H. Kamat

(Adv. For the Defendant Nos. 20)



Court of the Civil Judge, S. 91, Panaji
Solemnly affirmed before me by Shri/
Smt. Vikram Shah
who is identified before me by Shri/
Smt. H. Kamat whom
I personally know.
Panaji, 20/4/2022

[Signature]
Superintendent/Clerk of the Court

Checked with original

[Signature]

LOONKAR DEVELOPERS PVT LTD

CIN : U45200MH2005PTC150992

644

SC552/13

DW/ C-145

20/4/22

CERTIFIED TRUE COPY OF MEETING OF THE BOARD OF DIRECTORS OF LOONKAR DEVELOPERS PRIVATE LIMITED HELD ON 31ST JANUARY 2022 AT 12.30 P.M. AT REGISTERED OFFICE AT 203, PENINSULA CORPORATE PARK, G. K. MARG, LOWER PAREL, MUMBAI 400 013.

"RESOLVED THAT Mr. Vikram C. Shah, be and is hereby authorised to on behalf of the company, sign and affirm any Affidavit in Evidence for the purpose of tendering the same before the Hon'ble Civil Judge Senior Division 'A' Court at Panaji, Goa in Special Civil Suit No. 52/2013/A."

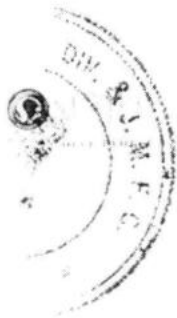
"FURTHER RESOLVED THAT Mr. Vikram C. Shah, be and is hereby authorised to on behalf of the company, step in the witness box and depose on behalf of the company so also tender documents in evidence."

"FURTHER RESOLVED THAT Mr. Vikram C. Shah, be and is hereby authorised to on behalf of the Company to do or cause to do all such acts as may be necessary for the above purpose."

Certified True Copy.

For Loonkar Developers Private Limited

Director



Regd Office: 203, Peninsula Corporate Park, Tower-1, A-Wing, Ganpatrao Kadam Marg, Lower Parel, Mumbai - 400 013
Tel : + 91 22 4068 4068 / 2494 4567 | Fax : +91 22 2490 1919 | E-mail : sales@sumergroup.co.in | Website : www.sumergroup.co.in



noted with original

[Handwritten signature]

DW1

SCS no. 52/2013/A

**IN THE COURT OF CIVIL JUDGE SENIOR DIVISION,
AT PANAJI**

SCS**No.52/12013/A****Exh. No. C/143**

Deposition of witness no. DW1 for the defendant.

On Oath

I do hereby on Solemn affirmation state that

My Name : Vikram Shah

Father Name: Chinubhai Shah

Age : 72 yrs.

Occupation : Business

Resident : . Mumbai, Maharashtra

**Examination in Chief of PW1 by Ld. Adv. P. Rao for
the Defendant no.20**

I am producing affidavit in evidence. I affirm the contents of my affidavit. The witness identifies his signature at point A on page 23. Same is taken on record and marked as **Exhibit C/144**.

I am producing true copy the extract of the Resolution taken in the meeting of BOD of defendant no.20.

Ld. Adv. P. Gawandi objected on the ground that the defendant no. 2 had not relied on the said document.

Order: Since the authorization given to the witness by the company cannot be strictly construed as a



[Handwritten signatures]

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document, said objection is rejected.

Same is taken on record and marked as **Exhibit C/145**.

I am producing notarized copy of the Form No. I and XIV of survey nos. 93/2, 93/3 and 93/4 (manually issued), same are taken on record after comparing with the original and marked as **Exhibit C/146 colly**.

I am relying on the copies of the Deed of Sale dated 25.4.2006 in respect of survey no. 93/3, Deed of Sale dated 25.4.2006 in respect of survey no. 93/2, Deed of Sale dated 25.4.2006 in respect of survey no. 93/4 produced by the plaintiff which are at Exhibit 110 colly.

In addition to the above I am producing notarized copy of Sale Deed dated 25.4.2006 in respect of survey no. 93/3, same is taken on record after comparing with the original and marked as **Exhibit C/147**.

I am producing notarized copy of Sale Deed dated 25.4.2006 in respect of survey no. 93/4, same is taken on record after comparing with the original and marked as **Exhibit C/148**.

I am producing notarized copy of Sanad dated 16.12.2011 issued by Collector North Goa alongwith the plan in respect of survey no. 93/3. Same is taken on



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record after comparing with the original and marked as **Exhibit C/149.**

I am producing notarized copy of Sanad dated 16.12.2011 issued by Collector North Goa alongwith the plan in respect of survey no. 93/4. Same is taken on record after comparing with the original and marked as **Exhibit C/150.**

I am producing notarized copy of technical clearance order dated 27/02/2013 issued by Town and Country Planning Department in respect of survey no. 93/3. Same is taken on record after comparing with the original and marked as **Exhibit C/151.**

I am producing notarized copy of technical clearance order dated 27/08/2012 issued by Town and Country Planning Department in respect of survey no. 93/4. Same is taken on record after comparing with the original and marked as **Exhibit C/152.**

I am producing notarized copy of No Objection Certificate dated 13/03/2013 issued by Health Department in respect of survey no. 93/3. Same is taken on record after comparing with the original and marked as **Exhibit C/153.**

I am producing notarized copy of No Objection Certificate dated 21/09/2012 issued by Health



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Department in respect of survey no. 93/4. Same is taken on record after comparing with the original and marked as **Exhibit C/154**.

I am producing the notarized copy of Construction licence dated 16/04/2013 issued by Goa State Environment Impact Assessment Authority in respect of survey no. 93/4. Same is taken on record after comparing with the original and marked as **Exhibit C/155**.

I am producing the notarized copy of Construction licence dated 16/04/2013 issued by V.P. Bambolim. Same is taken on record after comparing with the original and marked as **Exhibit C/156**.

I am producing the notarized copy of Construction licence dated 30/03/2013 issued by V.P. Bambolim. Same is taken on record after comparing with the original and marked as **Exhibit C/157**.

Cross Examination by Ld. Advocate P. Kamat for the Plaintiff

It is true that defendant no. 20 has not filed any written statement. I say that def no. 20 has adopted the statement of def. no. 1 and 2. I do not have any document to show that def. no. 20 had adopted written



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statement if Def. no. 1 and 2. It is not true to suggest that the affidavit tendered by me today is not as per the provisions of law, in absence of pleading. It is not true to suggest that the contents of para 1,2 and 3. With reference to para 4 of AIE , the documents mentioned therein are Form No. 1 and XIV and besides that there are no other documents. It is not true to suggest that the contents of para 4 and 5 are false. At present I do not have any documents in my possession to substantiate my statement in para 6 of AIE. I can produce these said documents. It is not true to suggest that my statements in para 6 to 10, 12, 13 are false. With reference to para 13 AIE I do not have any documents except Form No. 1 and XIV in relation to the properties mentioned therein. I do not have any expert report or corresponding certificate in relation to the present survey number and properties mentioned in para 13 for identification of the properties. I say that I can produce the same.

Q. Can you tell the details of undertaking and commitments given by the confirming party and the purchaser as per the clause 2 in all the three sale deeds including Exh. C-147 and 148?

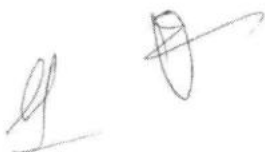


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Ans - Said commitments were given by the confirming party (Raghurai Tamba) to the comunidade in the consent terms filed in respect of the property under survey No. 89/3, to allot 45 plots altogether in the properties surveyed under No. 93/2, 3 and 4. However these properties were not subject matter of the said suit. I am aware of CMA 6/2010 is filed by the comunidade to set aside the above consent decree and it is still pending. I have read the contents of the consent decree.

It is not true to suggest that in the said consent decree it was mentioned that unless and until the said plots were allotted to the comunidade the suit property could not be sold. It is true that all the three sale deeds were executed by the vendors and confirming parties to def. No. 1 without complying the terms and conditions of the consent decree. I voluntarily say that since the plots to be given to the comunidade were not developed, the def. No.1 undertook the responsibility of complying the terms and conditions of the consent decree. It is not true to suggest that my preceding statement is false. I do not know the total area of the properties named in the schedule-1 of all three sale



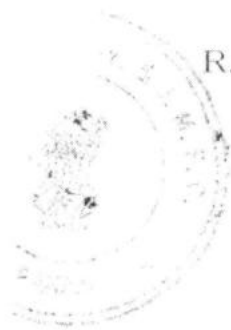
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deeds. I am not aware if the consent decree was obtained without prior approval and permission from Administrative Tribunal as per provision of Code of Comunidade. I have not produced the sale deed by which the def. No. 20 has purchased the part of the suit property. I say that the sale deed is produced by the plaintiff. I am not aware if our sale deed was executed after filling of the present suit. It is not true to suggest that sale deed executed in favor of Def. No. 20 are illegal. It is not true suggest that all the three sale deeds in favor of Def. No. 1 and 2 are illegal. It is not true to suggest that contents of para 15 to 20 of AIE are false. The statement made in para 19 is made in the year 2007. In the year 2007, the def no. 20 did not purchase any portion of the suit properties. I am aware about the pendency of the civil suit no. 66/2009 pending before the district court filed by the member of the comuunidade and the plaintiff in which def. no. 20 is the party. I am not aware if the decree in RCS 6/2007 is challenged by the plaintiff.

Further cross deferred for want of time.

R.O.A.F.C.



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Panaji

Dated: 20.04.2022

Certified that the examination
of this witness is recorded in
my presence and hearing.



Before me

SCJ 'A' Court,
Panaji

A' Court, Panaji

MP/-

Checked with original



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Further Cross Examination by Ld. Advocate P. Kamat
for the Plaintiff

I do not know whether the decree mentioned in para 21 of my AIE was passed solely based on the admission of the defendant. I have not read the contents of the said decree. I have seen the said decree. It is not true to suggest that the contents of para 21 of my AIE are false. I have not read the contents of application mentioned in para 23 and the order passed by the Dy. Collector as stated in para 24 of AIE. Said application was made and the case was pursued by Pascoal Trinidade. It is not true to suggest that the contents of para 23, 24 and 25 of my AIE are false.

With reference to para 26 I have not read the contents of plaint and written statement in both the suits. I do not know who had drafted and approved the consent terms mentioned in para 27 of AIE. Defendant no.20 had taken a legal opinion regarding the consent decree mentioned in para 27 at the time of purchase of the property by Pascoal Trinidad. Now I say that Pascoal Trinidad had taken the legal opinion and not the defendant no.20. It is not true to suggest that the contents of para 27, 28, 29 of my AIE are not to my



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knowledge.

It is not true to suggest that the contents of para 30 of my AIE are false. The name of defendant no.1 is reflecting in the survey records pertaining to the suit property from year 2007. it is true that prior to 2007, The names of the persons in the other rights column and tenant's column was appearing and same were deleted by the Order of Dy. Collector.

Q. With reference to para 32 can you explain how the consent terms, consent decree were in public domain?

Ans: I say that both the above documents could be availed by any person by making application to the concerned authorities.

With reference to para 33, 34 and 35 of my AIE said information was provided to me by Pasoal Trinidad and he had also shown us the correspondence. I am aware that Pasoal Trinidad has expired and his wife and son are parties to the suit and further that they have not lead any evidence in this suit till date.

With reference to para 36 to 40 of my AIE, the information was given to me by Pascoal Trinidad and I have personally seen all the documents. It is not true



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to suggest that the contents of para 37, 38, 39 and 40 of my AIE are false. I have read the orders of the High Court and Supreme Court mentioned in para 42, 43 and 44. It is not true to suggest that the contents of para 41 to 44 of my AIE are false.

With reference to para 45 to 49 of my AIE, the permissions and documents mentioned therein were obtained by Pascoal Trindade and not by defendant no.20. I do not know that the permissions and documents mentioned herein above were obtained during pendency of the application for setting aside the decree in SCS 222/94/B filed by the Comunidade.

It is not true to suggest that the contents of paras 45 to 50 of my AIE are false.

It is true that the transaction of sale mentioned in para 51 of my AIE was done subsequent of filing of the present suit and during pendency of the application for setting aside the decree in SCS 222/94/B filed by the Comunidade and Civil Suit 66/2009 before the District Court. It is not true to suggest that the contents of paras 52, 63 of my AIE are false.

To the suggestion that during the pendency of the present suit defendant no.1 gave proposal for settlement to the plaintiff and defendant no.20 is also



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party to the said proposal. I say that I am aware that both the parties have agreed to settle the matter. One of the settlement term is that defendant no. 20 has agreed to allot 5,000 sq. mts. from survey no. 93/2 purchased by them to the plaintiff, subject to condition that suit filed by the Comunidade shall be withdrawn and there shall be no any claim against the defendant. I am not aware about the amount agreed to be paid by the defendant no.1 to the Comunidade. It is not true to suggest that I am deposing falsely.

At this Stage Ld. Advocate Rao for the defendant no.20 requests that the witness may be permitted to be re-examined for the limited purpose of exhibiting documents pertaining to the title in respect of the suit property which were not available in the hands of the witness who is the authorised representative of defendant no.20 yesterday during recording of his evidence.

In reply Ld. Advocate Kamat subjijs that as per evidence Act the re-examination is permissible only in case of existence of any ambiguity and not otherwise. In the present case there are no such ambiguity and therefore re-examination is not called for.



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Order: The production of the documents not relied by the party cannot be permitted to be produced under the re-examination. In case the witness wishes to rely on the same, the procedure contemplated under the law is to be followed. The prayer of Ld. Advocate Rao is totally beyond the scope of re-examination and hence same is rejected.



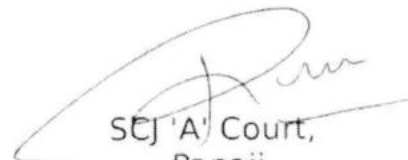
R.O.A.F.C.

Panaji

Dated: 21.04.2022

Certified that the examination
of this witness is recorded in
my presence and hearing.

Before me


SCJ 'A' Court,
Panaji

MP/-

Checked with original



Order reserved on : 07.10.2022

Order pronounced on: 13.10.2022



CNR NO: GANG020025402013

Special Civil Suit No. 52/2013/A

ORDER

(BELOW EXHIBIT D-170)

(Delivered on this 13th day of the month of October of the year 2022)

1. Heard Ld. Advocate P. Rao for the defendant no. 20.
2. The plaintiff has given no objection to the this application. The defendant desires to implead M/s PVM

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Associates as a party in the present suit. It is contended by the defendant no.20 that vide Articles of Association dated 01.04.2013, the suit property was transferred by defendant no.1 to the above mentioned Association of Persons and thus the said Association is necessary party to the present suit. The defendant no.20 has relied on the copy of the Articles of Association.

3. I have perused the copy of the Articles of Association relied by the defendant no.20, it is a document executed before the Notary Public. It is not registered before the authorities.

4. Basically, said document was executed by the parties with the object of developing the properties mentioned therein. It also specifies the shares of the respective parties. It is further seen that the share of the defendant no.1 was decided based on his contribution by way of providing the properties for the development. The other two parties had contributed in terms of money.

5. In my opinion, said Articles of Association does not create any right, title in favour of the said Association based on the said document. In case there was such intention between the

parties, then same ought to have been crystallized by entering into an agreement. Therefore, no right or title is crystallized in favour of the Association. Apart from the above, there is enormous and inordinate delay in preferring the present application i.e. nearly after a decade, for which no explanation has been given in the application.

6. Be it as it may, we must not lose the sight of the fact that the plaintiff is a dominus-litus and therefore, if at all any such application has been filed, the same should have been preferred by the plaintiff. It is further to be appreciated that the members of the said Article of Association have not approached this Court and on the contrary, the defendant no. 20 desires to implead them without showing any justification for doing the same.

7. It appears from the conduct of the parties that they wish to protract the present proceedings by resorting to filing unmeritorious applications, till the Government accords them permission to settle the matter. Hence, the cost has to be imposed on the defendant no. 20.

8. In the backdrop of the above discussion, I pass following :

ORDER

The application is dismissed with cost of Rs. 2,000/- to be paid to the District Legal Services Authority as condition precedent.

Panaji,

Dated:13/10/2022

Mp/-

(Ram Subrai Prabhu Dessai)
Senior Civil Judge, 'A' Court,
Panaji.